

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 24-23

SAMSUNG ELECTRONICS

AMERICA, INC.,

COMPLAINANT,

v.

HMM CO., LTD. F/K/A HYUNDAI MERCHANT MARINE CO.,
LTD.,

RESPONDENT.

JOINT MOTION FOR EXTENSION OF TIME

Complainant, Samsung Electronics America, Inc. (“SEA”), and Respondent, HMM Co., Ltd. (“HMM”) (each a “Party” and collectively the “Parties”), through their undersigned counsel, respectfully submit this Joint Motion for Extension of Time and proposed revised procedural schedule (“Joint Motion”).

The Parties respectfully seek an Order extending the discovery deadlines by approximately 60 days, extending the close of discovery from June 23, 2026, to August 24, 2026, and resetting all other case deadlines in the Presiding Officer’s Amended Scheduling Order commensurately. The Parties have been working diligently and cooperatively to complete discovery under the current schedule in accordance with the Presiding Officer’s direction given at the January 29, 2026,

discovery conference, to include making supplemental document productions and completing several fact depositions. The Parties are unable to complete this work before the March 31, 2026, fact discovery deadline, however. Good cause exists for a 60-day extension given the extensive and ongoing document production and the expansive scope of fact and expert deposition practice in this matter. In accordance with the Presiding Officer's guidance,¹ the Parties are seeking these additional 60 days to allow for completion of discovery in an orderly and efficient manner. This Joint Motion is filed in compliance with 46 C.F.R. § 502.102, which permits motions for enlargement of time upon a showing of good cause when received at least seven days before the scheduled filing date. The Parties further submit that they met and conferred on February 23, 2026, as required by 46 C.F.R. § 502.71.

A. The Parties Are Cooperatively Addressing Discovery Disputes Resulting in Additional Document Productions

As mentioned in the Parties' previous Joint Motion for an Extension of Time (Dkt. 36; Dkt. 37 Amended Motion), this proceeding includes expansive claims spanning three years with more than 96,000 charges at issue. As such, the Parties have expended significant effort to complete the production of documents by the deadlines imposed in the Second Amended Scheduling Order. Dkt. 40. Since the submission of the previous Motion for Extension of Time, HMM made an additional document production on January 15, 2026 ("PROD011") comprising 189,183 pages, and SEA made a supplemental production on January 14, 2026 of 8,479 pages. Further, HMM and SEA continue to meet and confer regarding discovery disputes and categories of documents not

¹ At the conclusion of the discovery conference, the Presiding Officer instructed the Parties to develop a record of document production work and depositions undertaken before seeking an extension, and a working schedule for the completion of depositions and documents. If that working schedule requires additional time past the March 31, 2026 fact deposition date, then the parties should seek an extension of time. *See* FMC 24-23 Disc. Conference Tr. Part 2, 32.

yet produced following the January 29, 2026 discovery conference with the Presiding Officer. As a result of these discussions, HMM made an additional production on March 3, 2026 (“PROD012”) comprising 6,405 pages and intends to make several additional productions in the coming days and weeks as these materials complete review.

Given the ongoing document productions and follow-on requests following the depositions taken thus far, the Parties are simultaneously reviewing the additional documents and preparing for and taking fact depositions. This work is complicated by the fact that thousands of relevant documents are partially or entirely in Korean, necessitating that they be identified, reviewed, and formally translated before they may be used productively in depositions.² Given the continuing nature of document production, the Parties respectfully seek a 60-day extension to allow for the completion and review of supplemental document productions while concurrently completing fact depositions.

B. The Parties Have Completed Several Fact Depositions but Require Additional Time to Schedule and Complete Remaining Depositions

The Parties have also worked cooperatively to schedule and complete fact depositions as expediently as possible, given the logistical and scheduling challenges of completing approximately 35 depositions across several U.S. states and internationally. The parties have already completed seven depositions, and have an additional seven scheduled before the end of March. Yet a 60-day extension of time is still necessary to meaningfully complete all fact depositions.

² In an additional measure of cooperation and efficiency, a Translation Stipulation was executed between the Parties on February 24, 2026, that delineated an agreed-upon workflow and method for translation, as well as a common translation services vendor, to reduce the time needed for certified translation and eliminate translation disputes during depositions.

To date, SEA has noticed 20 HMM witnesses, including one 143(b)(6) witness, and HMM has identified 11 SEA witnesses, including one 143(b)(6) witness. Further, the parties have discussed, and intend to stipulate to, allowing depositions beyond 20 in accordance with 46 CFR § 502.143(a)(2). These additional depositions are necessary to allow for the testimony of third-party witnesses with relevant information³ and additional HMM witnesses that were newly identified through deposition testimony and recently produced documents.⁴ The witnesses in this matter reside in California, New Jersey, Texas, New Zealand, and South Korea. While the Parties have worked diligently to schedule and complete depositions, they are unable to complete all fact depositions by March 31, 2026, in accordance with the Second Amended Scheduling Order due to the large number of depositions and dispersed locations of the witnesses.

Depositions of HMM Deponents: To date, SEA has taken the depositions of seven HMM witnesses and an additional five depositions will be taken March 18-26, 2026. The depositions of HMM witnesses during these last two weeks in March are HMM executives in Korea that are being produced in Washington DC, with appropriate time necessary this week for their preparation before deposition. HMM presented this option of producing the HMM witnesses in the U.S., at considerable time and expenses, as an accommodation to the parties' schedules and with the intent to complete the depositions as efficiently as possible. Even with this accommodation by HMM, there are three HMM witnesses which must be taken in South Korea or elsewhere, as the witnesses

³ SEA and HMM both anticipate taking the deposition of at least two employees of Lotte Global Logistics North America ("Lotte"), the entity that provided inland intermodal logistics on behalf of HMM for SEA Shipments during the Relevant Time Period. Lotte produced documents following the Presiding Officer issuing a subpoena. Additionally, a former SEA employee will require a subpoena for her deposition, and several other possible third-party witnesses have been identified.

⁴ From these documents and deposition testimony from the first round of HMM witnesses, SEA has identified at least two additional HMM witnesses.

are unable to travel to the United States. The parties intend to identify a 7-10 day period during the additional 60 days, likely in early May, to take all three of these depositions. The taking of depositions is further complicated by the need for translation—two of the U.S.-based witnesses already taken required full translation with Korean interpreters, which significantly increases the complexity of the depositions and the available time for substantive testimony. All five of the depositions in D.C. scheduled for March 18-26 will also require translation, and it is anticipated that at least half of the depositions remaining to be scheduled will require the same. Finally, among the HMM witnesses that SEA has noticed, four no longer work for HMM. HMM has contacted at least two of these witnesses and can make them available for testimony, but the other may need to be located and subpoenaed if they do not agree to testify. It is the Parties' intent to take these four depositions during the 60-day extended period, as well.

Depositions of SEA Deponents: As SEA identified its requested deponents of HMM witnesses in January, and in light of the additional number of deponents sought (who primarily still work for the company), the Parties jointly focused on scheduling, preparing and taking two initial tranches of HMM deposition witnesses first. This is even the case while documents were still being produced that could be relevant for those depositions because the parties were dutifully mindful of the amended scheduling order they were working under.

HMM identified its requested deponents of SEA witnesses in February. Of the eleven deponents sought, five witnesses no longer work for SEA, which requires additional discussions as to their voluntary providing of testimony and scheduling around their current job obligations. The first SEA witness will be deposed this Friday, March 13, 2026, and this former SEA employee has a more flexible schedule than others because he is now retired. The next SEA witness scheduled to be deposed is another former SEA employee, currently residing in the western part

of New Zealand, who is working on a vineyard with limited internet access. This former SEA employee has agreed to be deposed remotely on March 31, 2026 (April 1, 2026, in New Zealand).

The parties have exchanged dates for former SEA employees during the week of March 30 and will continue to work on and around those target dates. Three former employees reside in Texas (though one witness has not agreed to be deposed yet). One former SEA employee works in New Jersey but just started a new job on Friday, February 27, and with this challenging new schedule has requested that his deposition commence only after 7 p.m. HMM has instead requested he agree to a deposition on the weekend (the witness has not yet confirmed same). The remaining five witnesses identified by HMM are still employed by SEA but reside in California. It will therefore require setting aside at least two weeks for depositions in California. The 143(b)(6) deposition will also likely take place in California during this two-week period. Counsel for the parties have identified part of the week of April 20, and the weeks of May 4 and 11 to target these California-based witnesses.

The Parties are further coordinating efforts to schedule third-party depositions, along with any remaining party witnesses, during the second half of May if the 60-day extension is approved. Therefore, the full 60-day extension is vital to allow for the completion of all fact depositions.

C. Proposed Amended Scheduling Order

Given the magnitude of the claims, evidence, and witnesses in this case, along with the record of the parties diligently working together to address the necessary documents and undertaking considerable deposition work already, an extension is respectfully sought. Extending the time to complete fact depositions and review the recent document productions will enable the advancement of this matter without prejudicing either Party's ability to fully develop the record, meaningfully review the evidence, prepare for and take fact witness depositions, and subsequently

present the experts with relevant evidence to allow them to prepare and defend their materials. Based on the good cause shown above, the Parties respectfully request the extension and resetting of the deadlines as follows:

Event	Current Deadline	Requested Deadline
Joint status report due; fact depositions end	March 31, 2026	May 29, 2026
Expert Reports due	May 1, 2026	June 30, 2026
Rebuttal expert reports due; expert depositions begin	June 1, 2026	July 31, 2026
Discovery closed	June 23, 2026	August 24, 2026
Meeting to discuss joint prehearing statement must be held by this date; exhibits must be exchanged by this date	July 7, 2026	September 7, 2026
Joint prehearing statement, objections to exhibits, and motions for confidential treatment are due	July 28, 2026	September 28, 2026
Prehearing conference to be held at 800 North Capitol Street, NW, Washington, DC at 10:30 am	August 4, 2026	[To be determined with the availability of the Presiding Officer]

Based on the good cause shown above, the Parties request an Order extending the current discovery deadline and resetting the deadlines in this case as outlined above.

Respectfully Submitted,

Dated: March 11, 2026

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